

TENTATIVE RULING

Case: **Smith v. Baker**
 Case No. CV2026-1600

Hearing Date: **July 23, 2026** **Department Fourteen** **9:00 a.m.**

Petitioner Karen Smith’s unopposed motion set aside and vacate the dismissal or adverse order entered on June 17, 2026 is **DENIED WITHOUT PREJUDICE**. (Code Civ. Proc., § 473, subd. (b).) Petitioner failed to file a proof of service at least five court days before the hearing, showing that the motion was timely served on respondent Sean Jones. (Cal. Rules of Court, rule 3.1300(c); Code Civ. Proc., § 1005, subd. (b).) Further, the Court finds that petitioner has not explained her mistake, inadvertence, surprise, or excusable neglect. (*Baratti v. Baratti* (1952) 109 Cal.App.2d 917, 921.)

The notice of motion does not provide notice of this Court’s tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Smith v. Jones**
 Case No. CV2026-1601

Hearing Date: **July 23, 2026** **Department Fourteen** **9:00 a.m.**

Petitioner Karen Smith’s unopposed motion set aside and vacate the dismissal or adverse order entered on June 10, 2026 is **DENIED WITHOUT PREJUDICE**. (Code Civ. Proc., § 473, subd. (b).) Petitioner failed to file a proof of service at least five court days before the hearing, showing that the motion was timely served on respondent Sean Jones. (Cal. Rules of Court, rule 3.1300(c); Code Civ. Proc., § 1005, subd. (b).) Further, the Court finds that petitioner has not explained her mistake, inadvertence, surprise, or excusable neglect. (*Baratti v. Baratti* (1952) 109 Cal.App.2d 917, 921.)

The notice of motion does not provide notice of this Court’s tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.